Court of Appeal, Sixth Appellate District
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CASE #: H054014

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Petitioner In Pro Per

COURT OF APPEAL OF THE STATE OF CALIFORNIA

SIXTH APPELLATE DISTRICT

ERIC BRAKEBILL JONES, Petitioner, v. SUPERIOR COURT OF MONTEREY, Respondent. HEIDI JONES BLANCHARD, Real Party in Interest.	Case No.: 25PR000590 **PETITION FOR WRIT OF MANDATE (CCP § 170.3(d)) AND REQUEST FOR IMMEDIATE STAY** Dept 13: Hon. Elisabeth K. Mineta **IMMEDIATE RELIEF REQUESTED**

1. INTRODUCTION: Petitioner seeks an emergency Writ of Mandate pursuant to CCP § 170.3(d) to vacate the void orders issued by the Respondent Court (Dept 13, Hon. Elisabeth K. Mineta) on January 7, 2026. The Court proceeded in excess of jurisdiction after denying a timely peremptory challenge.

2. JURISDICTION & TIMELINESS: This Petition is filed within the strict 10-day statutory window mandated by CCP § 170.3(d). The challenged order was issued orally on the record on January 7, 2026.

3. THE ERROR: The Respondent Court erred in ruling the CCP 170.6 challenge 'untimely' based on a prior challenge to a different judge (Culver). Under the 'All Purpose Assignment' rule, Petitioner asserts the challenge against Judge Mineta was filed immediately upon her specific assignment to the matter, or alternatively, that the prior challenge did not exhaust rights against a new assignment.

4. IRREPARABLE HARM: Unless a STAY is issued, the Real Party in Interest (Heidi Blanchard) will dissipate estate assets. Specifically, the $10,985.00 in 'Genetic Marker' funds confirmed converted in the June 27, 2025 Nicora Letter remain unaccounted for. The Real Party is currently moving to liquidate the primary asset at 17742 Berta Canyon Road based on void authority.

5. EVIDENCE PRESERVATION: Petitioner has ordered the official Reporter's Transcript of the January 7, 2026 hearing to perfect the record. See Exhibit A: eScribers Order ID 81400940104 (Receipt Attached).

6. PRAYER: Petitioner prays for a Writ of Mandate directing the Respondent Court to VACATE its order denying the 170.6 challenge and to ASSIGN the matter to a new judicial officer immediately. Petitioner further requests an IMMEDIATE STAY of all proceedings in Case 25PR000590 pending resolution of this Writ.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

DATED: January 12, 2026

ERIC BRAKEBILL JONES

Petitioner In Pro Per